

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Here, Defendant did not specifically give information in compliance with CRC 3.1324 as to when the facts were discovered leading to the motion to file an amended answer or why that was not made earlier. However, sufficient information is provided as to the time line of events, and that, with the court finding an absence of prejudice, merits the granting of the motion.

Motion for Leave to File First Amended Answer GRANTED.

The proposed First Amended Answer attached as Exhibit 1 to Defendant's Motion shall be deemed filed and served as of the date of this Order.

Trial Setting Conference and Motion for Preference confirmed for 8.19.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508299	LARA-MARTINEZ VS UNIVERSAL CONSTRUCTION AND ENGINEERING, A CORPORATE ENTITY FORM UNKNOWN	MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT

Tentative Ruling: No tentative ruling.

If Plaintiff has filed an amended complaint, then motion is vacated and Case Management Conference continued to 10.05.26. If not filed, then Motion to Strike hearing is continued to 8.19.26 to address the merits of the motion and the Case Management Conference is continued to 8.19.26 as well.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508778	TORRES VS COUNTY OF RIVERSIDE	HEARING ON MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF MARIA TORRES BY COUNTY OF RIVERSIDE, RIVERSIDE COUNTY SHERIFFS DEPARTMENT, OFFICER JESUS ENRIQUE MORALES-DAVILA

Tentative Ruling: The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Once the defendant has met its burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense thereto. (Code Civ. Proc. § 437c(p)(2).) To satisfy this burden, the plaintiff cannot rely upon the allegations or denials in its pleadings but

must “set forth the specific facts showing that a triable issue of material fact exists.” (*Ibid.*) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238.)

Under the Government Claims Act, a plaintiff must file any lawsuit for money or damages against a local public entity “not later than six months” after the *date* the written rejection notice “is personally delivered or *deposited* in the mail.” (Gov. Code, § 945.6(a)(1).) “The statute of limitations period is triggered ‘from the date the notice is deposited in the mail by the public entity, and not the date it is received by the claimant or counsel.’” (*Him v. City and County of San Francisco* (2005) 133 Cal.App.4th 437, 445.) A public entity properly gives notice of rejection by “[m]ailing the notice to the address... stated in the claim or application as the address to which the person presenting the claim or making the application desires notices to be sent.” (Gov. Code, § 915.4(a)(2).)

Here, the evidence shows that on 4/22/25, the County received Plaintiff Urbano’s government claim and Plaintiff Torres’s third government claim. Both claims listed Plaintiffs’ mailing address as “85701 Avenida Nicole, Coachella, CA 92236” and identified their legal counsel as Muro & Muro. (UF nos. 10, 12, 16, 20, 22, 26; Lopez Decl., ¶¶ 10, 14, Ex. “F”, “I”.) This is undisputed. Then, the County’s clerk assistant Daniel Lopez declared that on 4/23/25, he deposited the notice of rejection of Plaintiff Urbano’s claim in the United States mail, addressed to Plaintiff Urbano at the Coachella address and to his designated counsel. (Lopez Decl., ¶¶ 15-17, Ex. “J”, “K”.) A day after, on 4/24/25, Lopez deposited the notice of rejection of Plaintiff Torres’s claim in the United States mail, addressed to Plaintiff Torres at the Coachella address and to her designated counsel. (Lopez Decl., ¶¶ 11-13, Ex. “G”, “H”.) Under the 6-month standard, the deadline to file suit expired on 10/23/25 and 10/24/25 for Plaintiff Urbano and Plaintiff Torres, respectively. Plaintiffs jointly filed their complaint on 11/3/25. As such, they both failed to file the complaint within requisite 6 months of date notices of rejection were mailed.

Plaintiffs attempt to defeat summary judgment by asserting that they relocated to La Quinta, on 12/2/24 (Urbano Decl., ¶ 2; Torres Decl., ¶ 2), and never received the rejection notices (Urbano Decl., ¶ 6; Torres Decl., ¶ 7). This argument fails. First, Plaintiffs listed the Coachella address on their formal claim forms submitted on 4/22/25. This is about 5 months after they purportedly moved to a new address. The County has complied with Government Code § 915.4(a)(2) by mailing the notices to the exact address listed on Plaintiffs’ claims. Second, the Court of Appeal has held that “a claimant is required to comply with the six-month statute of limitations associated with government tort claims upon proof that the notice of rejection was served even if it was not actually received by the claimant.” (*Him v. City and County of San Francisco*, *supra*, 133 Cal.App.4th 437, 445, internal citations omitted.) Critically, “the Legislature has placed upon the claimant the risk that a properly mailed notice of claim rejection is not delivered due to an error by the postal authorities.” (*Id.*) Proof of mailing, shown by a competent declaration from the claims adjuster who executed the mailing, satisfies the entity’s burden. (*Id.* at 444.) Also, a “plaintiff’s evidence of nonreceipt of the claim rejection notices is legally insufficient to raise a triable issue of fact negating the six-month statute of limitations defense.” (*Id.* at 446.) Applying the *Him* standards, because the Lopez declaration establishes proper mailing, Plaintiffs’ denial of receipt does not create a triable issue.

Alternatively, Plaintiffs attempt to argue that they “made numerous attempts to resolve this matter with Defendants’ adjuster... and at no time did Mr. Saputra [the adjuster] ever inform Plaintiffs’ counsel that a rejection had been mailed.” Counsel also asserts that “In a letter dated April 23, 2025, on the same matter, Mr. Saputra acknowledges receipt of the Claim [and] [t]hat letter does not reference a rejection of the Claim.” Counsel further asserts that the claim form “does list my fax number and address [but] Defendants never faxed or emailed a rejection letter to my office.” These arguments lack merit. Counsel cited no authority to explain how public entities bear the duty to advise claimants of the impending expiration of the statute of limitations. On the contrary, the claimant has every opportunity to inquire about the status of the claim and determine the limitations period.

Under Government Code §950.2, “a cause of action against a public employee ... for injury resulting from an act or omission in the scope of his employment ... is barred if an action against the employing public entity for such injury is barred.” It is undisputed that Officer Enrique Morales-Davila was operating a patrol vehicle in his sheriff’s uniform and responding to a call for a suspected stolen vehicle at the time of the collision. Because he acted within the course and scope of his employment, the statute of limitations bar that immunizes the County and the Sheriff’s Department also bars the action against the officer.

Defendants’ Motion for Summary Judgment GRANTED.

Case Management Conference continued to 9.03.26 pending proposed order and proposed judgment by Defendants.